

Complaint Report (CCRB)

CCRB Case No :	201311084	C/V Report Date :	Mon, 11/25/2013 12:30 PM
Complaint Type :	CCRB	Investigator :	Harold Rodriguez
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Mon, 11/25/2013 12:30 PM	Mode :	Phone
Incident Date(s) :	Monday, 11/25/2013 6:00 AM		
Place of Occurrence:		Precinct:	84
Location :	Apartment/house	Boro:	Brooklyn
Reason for Initial Contact :	Execution of search warrant		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:		Type:	Comp/Victim
Address:			
Contacts:			
Gender:		Ethnicity:	
Person Assisting:		Date of Birth:	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
CPT	Maximo Tolentino	Subject Officer	891112	Hispanic	084	Premises entered and/or searched - (A) Exonerated

Initial Complaint Narrative

On November 25, 2013, § 87(2)(b) heard her § 87(2)(b) -old father yelling, and saw officers burst her door open in a NYC housing building. The occupants of the apartment were: § 87(2)(b) her father § 87(2)(b) her § 87(2)(b) -old daughter § 87(2)(b) her sister § 87(2)(b) her nieces (§ 87(2)(b) and § 87(2)(b) her § 87(2)(b) -old nephew (§ 87(2)(b) and her § 87(2)(b) -old nephew § 87(2)(b)). The provided contact information of the occupants of the apartment is the same to § 87(2)(b)s. The officers got all of the occupants of the apartment out of their rooms, handcuffed them, and placed them on the floor. § 87(2)(b) stated that they were moved to a second room where they stayed for a while. § 87(2)(b) asked Sergeant Tellitino, PO1, if he had a warrant, and he told her he did have a warrant and not to worry about it. § 87(2)(b) asked the sergeant to see the warrant, but he did not show it to her. § 87(2)(b) stated that the officers did not have a warrant. § 87(2)(b) said that there were about 10 officers in her apartment, and they were dressed in uniforms like a Swat team. § 87(2)(b) was handcuffed by a Hispanic or Italian male officer, PO2, wearing a vest and a sweatshirt that said NYPD. She interacted with a female uniformed officer, PO3, who stated that the officers were from the 84th precinct. PO3 was described as a Hispanic/white/Italian woman with black hair that was pinned up in a ponytail, a height of 5'7", and a weight of 150 pounds or less. § 87(2)(b) also identified another officer at the scene as Sergeant Viggiano. She was able to identify this officer because he dropped something with his name on it, which her niece found and gave it to her. The officers accused § 87(2)(b)s sister, § 87(2)(b) of selling drugs and told § 87(2)(b) that she was going to jail and they saw her flush something down the toilet. § 87(2)(b) stated that the officers never found the drugs that they were looking for, and they did not apologize to her for entering her apartment. § 87(2)(b) further stated that important papers are missing, officers stole her daughter's money and damaged their bed.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Date of Birth :

Ethnicity:

Name of Witness:

Address:

Contacts:

Gender :

Date of Birth :

Ethnicity:

Name of Witness:

Address:

Contacts:

Gender :

Date of Birth :

Ethnicity:
